Intellectual Property

Subject: Intellectual Property

Policy Number: 1.15

Date Issued: December 2004

Initiating Entity: AVP for Research and Graduate Studies

Affected Entities: Campus Community

Responsible Entity: AVP for Research and Graduate Studies

Last Revised: May 22, 2008

Policy Statement:

As an institution of higher education, the University is dedicated to the ongoing creation and dissemination of knowledge. Believing that the intellectual enterprise is a fundamental element of our heritage, this University seeks to fulfill its responsibility to society by encouraging the highest order of scholarship and creativity among its faculty and students.

Although all citizens have a basic interest in the results of academic inquiry, those who actually engage in research and creative work have privileges specific to their product. This University subscribes to the principle that the results of research and creative work are the property of those persons conducting the investigation, who have the right to Intellectual Property and/or final disposition of the Materials. Such property rights, however, must be defined in relation to all of the persons, institutions, and agencies involved in the research and creative work.

This policy is not a substitute for any part of the collective bargaining agreements of the University employees that affect intellectual property.

References:

- Policy on Intellectual Property (AS-2204-056/FA) (PDF)
- President Ortiz memorandum to the Academic Senate dated May 22, 2008 accepting the policy on Intellectual Property (PDF)
- Delegation of Authority - University Commitments Regarding Intellectual Property (PDF)
- Memorandum of Understanding/California State University and California Faculty Association

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